TOWN OF THUNDERBOLT
SPECIAL CALLED MEETING
WEDNESDAY, JULY 28, 2021
5:30 PM

SPECIAL CALLED MEETING

1. **Call to order:**

Mayor Goette called the meeting to order at 5:30 pm. Those in attendance: Mayor Beth Goette and Council Members Dave Crenshaw, Larry Ward, Ed Drohan, John Henry and Brooks Barbaree. Council Member Dana Williams was not present. Staff in attendance were Town Administrator, Bob Milie; Finance Administrator, Shelly Jameson; Utilities/Accounts Payable Manager, Katina Spaulding; Town Attorney, Charlie Barrow; Police Chief, Sean Clayton and Clerk of Council/Zoning Administrator, Deatre Denion.

2. **Approval of the Agenda**

Mayor Goette asked for a motion to approve the agenda. **Council Member Ward made the motion with a second by Council Member Drohan. The motion passed unanimously.**

3. **Millage Rate Discussion**

Town Administrator Milie stated the consensus from council was to advertise for three meetings and keep the millage the same but with an increase in assessments it is considered a tax increase. Council Member Drohan stated realistically, we will be looking at inflation of the next few years. It is a very small increase. Council Member Crenshaw stated this millage is for this year, not 2022. Council Member Drohan states that is the issue. We will be doing this next year. Town Administrator Milie stated if you continue to accept rollback and the property values drop you are behind. Council Member Drohan states that is a little like what happen during COVID. Police had open vacancies reducing resources for protection. Council Member Crenshaw states it is a 3.37% increase. Mayor Goette stated we all live in Chatham County and they are increasing their millage rate. Council Member Drohan asked about value timberland. Town Administrator Milie stated it came from the assessor's office. John Henry asked about the motor vehicles. Town Administrator Milie stated he would look into those numbers.

4. **Short Term Vacation Rentals (STVR) Discussion**

Town Administrator Milie stated originally it had rental for both long term rental and short term rental but there was opposition to the long term rental being included. This is ordinance is for Short Term

Rental. This ordinance is very similar to Tybee Island. The occupancy piece was added because Tybee stated they wished they had added occupancy to their requirements. Town Administrator Milie did explain he removed land line requirement. The fee is what Town Attorney Barrow and Town Administrator Milie have bounced around. A business license is required. Town Attorney stated House Bill 317 did pass (state collection of taxes) imposes another charge on the innkeeper. Using host sites, House Bill 317 may collect for local but not sure. Council Member Crenshaw stated why don't we do a fee until it is clear the State will. Town Attorney Barrow stated the cost of the fee has to be backed up by Town's expense. Council Member Ward points out we can't compare ourself to Tybee. They have way more short term rentals than Thunderbolt. Town Administrator Milie stated the original thought was to use a fee. Council Member Drohan wished to speak but Town Attorney Barrow points out any one who has a STR or manages one needs not to participate in the discussion or vote. Council Member Drohan asked if he could step down and speak as a citizen. Council Member Crenshaw stated staff needs to know find out two things. One, find out about HB317 and two need to evaluate the cost of STR on the Town. Town Administrator Milie stated the first thing is to establish how many STRs are out there before the evaluation is done. Council Member Ward points out they had an owner run STR in his condo complex and issues with noise from those renting. Mayor Goette stated this ordinance is required to collect hotel/motel taxes. Town Attorney Barrow stated there are two ordinances required. If you go with a fee, you do not need an ordinance. Council Member Henry asked why can't the cost be based on the number of bedrooms. Town Attorney Barrow stated he will double check but the law states fees are on what it cost the town to address STRs, whether it be admin, fire or police. Council Member Henry stated we should have a limit on the number of STRs allowed. Town Attorney Barrow stated he has to researched this on whether you can limit the number allowed. Council Member Brooks stated could Council set a number to not succeed. Town Attorney Barrow stated the only limitation he knows of is liquor. Mayor Goette stated when the Town created the Victory Drive District it limited storage units. Town Attorney Barrow stated that is not the same. Council Member Henry stated if there was not a limit, he would vote it down. Town Attorney Barrow stated this is a zoning issue. Council could limit STRs by not allowing them in R-1. Town Administrator Milie asked Barrow can the Town cap if we do mix use. Town Attorney stated there is no case law on this issue. Mayor Goette states for a community our size it hurts us. Council Member Crenshaw asked about STRs already in the town would be grandfathered. Town Administrator Milie stated what he is hearing is the following request: cost of fee, look into HB317 and cost analysis needed. Council Member Ward stated staff should start with 45 already operating STRs and get data from them. Council Member Drohan, as a citizen, stated this is not an antagonistic situation. What does exist is a separation, the state allowing collection of tax funds vs. those who does not want STRs. I am a STR owner. I have a definite view. STR do not create blighted areas. With regards to maximum occupancy, adults, not children. Council Member Crenshaw stated you need a maximum occupancy. Do you want STVR or STR. They are distinctly different. Requiring a business license is a slippery slope. Long term rental is a business as well. Having a sign is not needed. Town Administrator Milie stated the reason is to help Police allowing neighbors to call owners themselves. Council Member Drohan continued with this ordinance should be about how the funds are to be used. Town Attorney Barrow stated there is a provision some can go in the general budget. Council Member Drohan stated the STR funds should be kept separate.

Stella Lavin, 3215 Robinson Ave. came forward and asked about TMI already using homes they own for short term rentals. Clerk of Council/Zoning Administrator Denion explained as of right now there are no ordinances in Thunderbolt addressing STRs. Staff stated they may not be renting but have it included in their contract to repair the boats. Ms. Lavin ask if she can have her family come and stay or does that count as STR. It was explained this ordinance does not prohibit family members visiting.

5. **Approval of Police Vehicle Purchase**

Town Administrator Milie stated Police Department needs another vehicle. There has been a debate on what type of vehicle to purchase. Staff and Council agree the Town needs to get something we don't already have. Police is looking to add a truck. This will be able to haul the mobile speed sign and large evidence. The truck will cost $5,000 to $6,000 more. It will be unmarked for the first years. Chief Clayton will drive the vehicle to utilize the warranty. Council Member Drohan asked would you be able to transport. Yes, once a cage is placed in the truck. Town Administrator Milie explained the Town will be getting a discount like other municipalities. The request is to approve up to $40,000 for the truck plus a light package. It should not be more than $44,000 or $45,000. Council Member Drohan asked would we be able to utilize additions from the out going vehicle. Chief Clayton stated what we can use will be reused. **Council Member Ward made the motion to purchase a police vehicle costing no more than $45,000. Council Member Crenshaw seconded the motion. The motion passed unanimously.**

6. **Budget Discussion**

Town Administrator Milie stated he would like to know what major projects should be included in the budget. The priorities provided have been a park plan and pickle ball. A Festival and Street Repairs have also been requested. Council Member Crenshaw stated it may be time for the water tower to be inspected. Town Administrator Milie states you will see more detail with the budget, more true cost of our facilities and vehicles. Mayor Goette asked if he had talked with department heads. Milie states he has and compensation is a big issue. Drohan asked for a summary of things will go over budget and underbudget. Crenshaw asked if he review total cost. Milie states yes. Looking at insurance and down the road.

7. **Water Conservation Discussion as it Relates to the Budget – Council Member Drohan**

Council Member Drohan stated there are different ways to look at the enterprise fund. There is the operational budget. This reflects the monies we require to maintain the system and appropriate costing mechanism so the budget can be met. EPD has mandated significant reduction from the aquifer. The cost of water will be higher. Sixty percent of the budget needs to be covered by the base rate. There are improvements needed and will have to be funded without SPLOST. The Town needs to revisit the number of gallons in each tier. Council Member Crenshaw stated he thought it was first 2000 gallons in the base rate. Utility/Accounts Payable Manager Spaulding stated it is 5,000 to 6,000 gallons. Council Member Drohan thanked Town Attorney Barrow for finding the ordinance to allow review and incremental increases of water rates. Utility/Accounts Payable Manager Spaulding points out there are six tiers and commercial rates are different from residential. Town Administrator Milie stated he gets the low flow toilets is something Council Member Drohan would like as part of the water conservation program.

Mayor Goette ask if there was a need to change COVID regulations due to Chatham County making a change. Clerk of Council reminded the motion that was passed last meeting was to follow CDC guidelines. Citizen's entering the building need to wear a mask. Staff are to wear mask in group settings, i.e. Council and Court.

Mayor Goette asked for a motion to adjourn. **Council Member Crenshaw made the motion to adjourn with a second by Council Member Ward.**

8. **ADJOURNMENT:**

The meeting was adjourned at 7:07 pm.

Mayor, Beth E. Goette

Clerk of Council, Deatre N. Denion